

Electronic equipment using bluetooth (bluetooth watch, earplug bluetooth...)

Produit : Electronic / Measuring devices

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CHINA

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## Product's definition

### Category

In which category the product is classified ?

Products covered: bluetooth.

### Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

### Definition of measurement instrument

Measurement instrument refers to a device, an instrument, a meter or a measuring tool which can be used to determine the measurement values of the measured objects directly or indirectly, as well as a standard matter used to unify measurement values, which can be a datum measurement instrument, a standard measurement instrument and a working measurement apparatus. (Article 56 of Implementation Rules for Metrology Law of the P.R.C.) Different types of measuring instruments have different regulatory requirements. The specific product categories are specified in the following catalog.

1. "Catalogue of Measuring Instruments Subject to Compulsory Management". Some measuring instruments are subject to mandatory management by the state and require type approval and/or compulsory verification. Such measuring instruments are specifically listed in the "Catalogue of Measuring Instruments Subject to Mandatory Management", including pressure gauges, handheld laser rangefinders and other products.

2. "The Catalogue of Measuring Instruments Managed by Law of the People's Republic of China". This catalog was issued by the former National Bureau of Metrology, and it contains a wider range of products than the Catalog of Measuring Instruments Subject to Compulsory Management, including rangefinders, pressure gauges, stopwatches, etc. This catalog is cited in some regulatory provisions such as the "Administrative Measures for Supervision of Imported Instruments of Measurement" and the "Administrative Measures for New Products of Measurement Instruments".

3. "The Catalogue of Type Examination of Imported Measuring Instruments of the People's Republic of China". This catalog is stipulated in the "Administrative Measures for Supervision of Imported Instruments of Measurement", and the scope of its products is different from the previous two catalogs, including sensors, pressure gauges, etc. This catalog is mainly applicable to the import field of measuring instruments.

Accordingly, among the products sold by your company, golf laser rangefinder, scuba diving double gauge-water pressure gauge & depth gauge, and stopwatch may belong to the measuring instruments managed according to law listed in the Catalogue of Measuring Instruments Managed by Law of the People's Republic of China; Among them, products such as golf laser rangefinder, scuba diving double gauge-water pressure gauge & depth gauge may belong to the measurement instruments subject to mandatory management listed in the "List of Measurement Instruments Subject to Mandatory Management". Products such as sensors, scuba diving double gauge-water pressure gauge & depth gauge may belong to

the measuring instruments listed in the “Type Examination Catalogue of Imported Measuring Instruments of the People's Republic of China”.

#### Definition of electrical and electronic products

Electrical and electronic products means the equipment and supporting products that work by relying on electric currents or electromagnetic fields or are manufactured for the purpose of generating, transmission and measuring electric currents and electromagnetic fields, with the rated working voltage of not more than 1,500 volts measured in direct current or not more than 1,000 volts measured in alternating current, excluding the equipment involving electrical energy production, transmission and distribution. (Administrative Measures for Restricted Use of the Hazardous Substances Contained in Electrical and Electronic Products)

Accordingly, most of the products involved in this section basically meet the definition of electrical and electronic products.

#### Definition of mechanical and electrical products

The term “mechanical and electrical products” refers to the mechanical equipment, electric equipment, transport tools, electronic products, electrical appliances, apparatus, instruments, metal products, and the parts and components and elements thereof. (Article 2 of Administrative Measures for Import of Mechanical and Electrical Products)

The specific scope of mechanical and electrical products is stipulated in the appendix of the “Administrative Measures for Import of Mechanical and Electrical Products”, which covers a wide range, including electrical and electronic products, instruments and meters, various luminaries and lighting devices, clocks and watches and their parts.

Among them, the import of some mechanical and electrical products is subject to automatic licensing management. The specific product scope is stipulated in the “Automatic Import License Mechanical and Electrical Products Catalog”.

#### Definition of radio transmission equipment

Radio transmission equipment refers to the radio transmission equipment that shall obtain model confirmation in accordance with Article 44 of Administrative Regulations for Radio of the P.R.C.. (Article 2 of Implementation Measures for Sales Filing of Radio Transmission Equipment (Interim))

Article 44 of Administrative Regulations for Radio of the P.R.C.: Except for micro power short-distance radio transmission equipment, for the production or import of other radio transmission equipment for domestic sale and use, an application for model confirmation shall be filed with the radio regulatory authority of the state. The model confirmation catalogue of radio transmission equipment shall be released by the radio regulatory authority of the state.

According to the “Requirements for Model Confirmation Equipment and Samples of Radio Transmission Equipment” published by the Ministry of Industry and Information Technology, radio transmission equipment includes 2.4GHz wireless LAN equipment and other product categories.

Accordingly, among the products sold by your company, products containing Bluetooth devices may belong to radio transmission equipment, including wireless Bluetooth sports headphones, etc.

#### Comments

#### Comments

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#### Labelling

## Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

Must use Chinese language.

## Mandatory labelling on product

### What are the mandatory labelling on the product ?

Regulatory requirements for

product labeling

1. The producers and importers of electrical and electronic products shall, in accordance with the national or industrial standards for the marking of the restricted use of the hazardous substances contained in electrical and electronic products, mark the hazardous substances contained in the electrical and electronic products they put on markets, and indicate the names and contents of hazardous substances or whether the elements or products which contain such substances may be recycled, the fact that improper use or disposal thereof may affect the environment or human health and other information. Where the aforesaid information cannot be marked on the products due to the restrictions in product volume, shape, surface materials or functions, it shall be indicated in the product manuals.
2. The producers and importers of electrical and electronic products shall, in accordance with the national or industrial standards for the marking of the restricted use of the hazardous substances contained in electrical and electronic products, indicate the EFUP on the electrical and electronic products they produce or import. Where the aforesaid information cannot be marked on the products due to the restrictions in product volume, shape, surface materials or functions, it shall be indicated in the product manuals.

General requirements

### General Requirements of Labeling

- |   |                                                                                                                                         |
|---|-----------------------------------------------------------------------------------------------------------------------------------------|
| 1 | All necessary information concerning the proper and safe use and (or) related service and maintenance of the products shall be included |
| 2 | Clear and easy to be identified, the smallest English letter shall not be less than 1.5 mm                                              |
| 3 | Must use Chinese language                                                                                                               |
| 4 | The contents shall be the same with that contained in other printed materials (such as advertisement and package)                       |

Content of Labeling and Instruction for Use

|    |                                                                                                                  |
|----|------------------------------------------------------------------------------------------------------------------|
| 1  | Product summarizes (product name, variety, specifications, model, the main purpose and working conditions, etc.) |
| 2  | Precautions for safe use                                                                                         |
| 3  | Structural characteristics and working principle                                                                 |
| 4  | Technical characteristics                                                                                        |
| 5  | Size, weight                                                                                                     |
| 6  | Installation and adjustment                                                                                      |
| 7  | Use and operation                                                                                                |
| 8  | Malfunction analysis and exclusion                                                                               |
| 9  | Safety protection device and incident handling                                                                   |
| 10 | Maintenance and repair                                                                                           |
| 11 | Transport and storage                                                                                            |
| 12 | Unpacking and inspection                                                                                         |
| 13 | Environmental or other requirements                                                                              |
| 14 | Graphs, charts, photographs (eg outline drawings, installation drawings, schematics, etc.)                       |

Labeling requirement of audio/video and similar electronic apparatus:

Name, trademark or identification mark of the manufacturer or the liability underwriter

Model or Code

Symbol of type II devices (if any)

Nature of power supply

Rated voltage/ Rated voltage range

Rated grid supply frequency<sup>1</sup>/<sub>4</sub> if any<sup>1</sup>/<sub>4</sub>%

Rated consumed current or rated consumed power

Symbol of consumed power

Warning mark on the altitude / weather conditions / battery, etc.

Labeling requirement for headset

Contents Requirements

Fished headsets should at least identify the manufacturer brand, model and impedance.

Transportation

Packed headsets can be transported via normally available land, sea and air transportation

Transportation should be avoided of sun, shockproof, exposure, heavy pressure and so on.

Storage

Packaged headsets should be stored in the warehouse, the temperature which under the range of -10 degrees Celsius to 40 degrees Celsius and the relative humidity of which less than 90% .There should no strong magnetic field, no sharp changes in temperature in the warehouse. And there should no acidic or other harmful gas around the warehouse.

## Special requirement for bluetooth headset

The Bluetooth product is a kind of electronic information products, the labeling of which shall comply with the Measures for the Administration of the Restricted Use of the Hazardous Substances Contained in Electrical and Electronic Products.

According to Article 12, Measures for the Administration of the Restricted Use of the Hazardous Substances Contained in Electrical and Electronic Products providing that When producing and using the packaging materials of electrical and electronic products, producers and importers of such products shall not violate mandatory standards or the standards required to be complied with by laws, administrative regulations and rules, and shall adopt harmless and easily degradable materials that facilitate recycling, and comply with national standards or industry standards on the use of packaging materials.

According to Article 13, Measures for the Administration of the Restricted Use of the Hazardous Substances Contained in Electrical and Electronic Products providing that Producers and importers of electrical and electronic products shall, in accordance with the national standards or industry standards on labeling the restricted use of hazardous substances in electrical and electronic products, label the hazardous substances contained in the electrical and electronic products made available on the market, indicating the names and contents of the hazardous substances, whether the components where such substances are used and their products can be recycled, information on the possible impact on the environment and human health as a result of improper use or disposal, etc. Where such information cannot be indicated on electrical and electronic products due to restrictions in terms of their size, shape, surface materials or functions, their producers and importers shall indicate relevant information in product manuals.

According to Article 14, Measures for the Administration of the Restricted Use of the Hazardous Substances Contained in Electrical and Electronic Products providing that Producers and importers of electrical and electronic products shall, in accordance with the national standards or industry standards on labeling the restricted use of hazardous substances in electrical and electronic products, indicate their environmentally-friendly use period on the electrical and electronic products produced or imported thereby. Where the environmentally-friendly use period cannot be indicated on electrical and electronic products due to restrictions in terms of their size, shape, surface materials or functions, their producers and importers shall indicate relevant information in product manuals.

## Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

## Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ?  
In which format, do we have to deliver the instruction manual to our customers ?

## Warnings - General ones

Are general warnings required ? If yes, which ones ?

## Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

## Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

## Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Comments

Comments

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## Environment

### Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

Regulatory requirements for

product labeling

1. The producers and importers of electrical and electronic products shall, in accordance with the national or industrial standards for the marking of the restricted use of the hazardous substances contained in electrical and electronic products, mark the hazardous substances contained in the electrical and electronic products they put on markets, and indicate the names and contents of hazardous substances or whether the elements or products which contain such substances may be recycled, the fact that improper use or disposal thereof may affect the environment or human health and other information. Where the aforesaid information cannot be marked on the products due to the restrictions in product volume, shape, surface materials or functions, it shall be indicated in the product manuals.
2. The producers and importers of electrical and electronic products shall, in accordance with the national or industrial standards for the marking of the restricted use of the hazardous substances contained in electrical and electronic products, indicate the EFUP on the electrical and electronic products they produce or import. Where the aforesaid information cannot be marked on the products due to the restrictions in product volume, shape, surface materials or functions, it shall be indicated in the product manuals.

Regulatory requirements for

product labeling

1. The producers and importers of electrical and electronic products shall, in accordance with the national or industrial standards for the marking of the restricted use of the hazardous substances contained in electrical and electronic products, mark the hazardous substances contained in the electrical and electronic products they put on markets, and indicate the names and contents of hazardous substances or whether the elements or products which contain such substances may be recycled, the fact that improper use or disposal thereof may affect the environment or human health and other information. Where the aforesaid information cannot be marked on the products due to the restrictions in product volume, shape, surface materials or functions, it shall be indicated in the product manuals.
2. The producers and importers of electrical and electronic products shall, in accordance with the national or industrial standards for the marking of the restricted use of the hazardous substances contained in electrical and electronic products, indicate the EFUP on the electrical and electronic products they produce or import. Where the aforesaid information cannot be marked on the products due to the restrictions in product volume, shape, surface materials or functions, it shall be indicated in the product manuals.

## Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

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## Technical rules / Standards

### General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

### Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

Regard to your products, if you want to check what are the technical requirement /toxicology/design... shall respect, thanks to check the labelling of your product first and find code of standards in labelling.

Step 1:

Enter this link: [https://docs.google.com/spreadsheets/d/1BDqhm609YySgDqs8cPOQUd-Dc\\_ZYPEEt7v-lv1sWB0CA/edit#gid=1640363751](https://docs.google.com/spreadsheets/d/1BDqhm609YySgDqs8cPOQUd-Dc_ZYPEEt7v-lv1sWB0CA/edit#gid=1640363751)

Step 2:

Enter the code of product standard selected by you in PACE and open the link in red.

Enter the code of mandatory safety standard above.

Step3:

Open link and find documents of standard, your products shall respect all requirements in file.

PS: If you can't find the translation file in link above, please do not hesitate to contact with CHINA Conformity Leader by mail "chinadmilegal@decathlon.net".

## Physical and mechanicals properties

What are the physical and mechanicals properties required ?

## Electrical aspects

What are requirements regarding electrical aspects ?

## Inflammability

Are there any specific requirements to ensure inflammability?

## Hygiene

What are the rules regarding hygiene ?

## Radioactivity

What are the rules regarding radioactivity ?

## Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

## Products making noise

What are the requirements regarding products making noise ?

## Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Marking Styles for the Names and Contents of the Hazardous Substances (Replaced by SJ/T 11364-2014/XG1-2017)

Names and Contents of the Hazardous Substances

| Part Name |              | Hazardous Substances |                              |                                |                                      |       |
|-----------|--------------|----------------------|------------------------------|--------------------------------|--------------------------------------|-------|
| Lead (Pb) | Mercury (Hg) | Cadmium (Cd)         | Hexavalent Chromium (Cr(VI)) | Polybrominated Biphenyls (PBB) | Polybrominated diphenyl ether (PBDE) |       |
| .....     | .....        | .....                | .....                        | .....                          | .....                                | ..... |

This table is prepared in accordance with the provisions of SJ/T 11364.

Indicates that said hazardous substance contained in all of the homogeneous materials for this part is below the limit requirement of GB/T 26572.

×: Indicates that said hazardous substance contained in at least one of the homogeneous materials used for this part is above the limit requirement of GB/T 26572.

(Enterprises may further provide in this box technical explanation for marking “×” based on their actual circumstances.)

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Comments

Comments

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# Certifications / Registrations

## Certifications or registrations

### Are there some certifications or registrations applicable to the product ?

SRRC (model approval certification) (compulsory)  
ROHS certification(voluntary)

#### Regulatory requirements for new product development of measuring instruments

The regulatory requirements for the development of new products of measuring instruments are mainly stipulated in the “Measurement Law”, the “Implementation Rules for Metrology Law of the P.R.C.”, and the “Administrative Measures for New Products of Measurement Instruments ”.

|                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Main range               | The new products of measurement instruments refer to those measurement instruments that an entity has never produced, including those whose performance and technical characters have been altered upon significant improvements in the aspects of structure and quality of material of original products.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| Main supervision methods | Type approval/prototype testing (including design appraisal/type evaluation                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| Applicant                | Manufacturers of new products for measuring instruments.<br><br>Note: With regard to the identification of the manufacturer in the mode of entrusted production, Article 14 of the “Implementation Rules for Metrology Law of the P.R.C.” stipulates: An enterprise, public institution, or individual industrial and commercial household manufacturing or repairing measuring instruments must operate on fixed premises, have production facilities, inspection conditions, and technicians, among others, as specified by the state, and satisfy safety requirements. Since the manufacturer needs to have production facilities, it generally refers to the actual entrusted producer. At the same time, the answer to the frequently asked questions ( <a href="https://zwdt.sh.gov.cn/govportals/bsfw/item/be4d31ff-e85b-4f7d-bc3e-d975a3aba8b5">https://zwdt.sh.gov.cn/govportals/bsfw/item/be4d31ff-e85b-4f7d-bc3e-d975a3aba8b5</a> ) of the type approval of domestic measuring instruments also clearly states: “The products applying for the type approval of measuring instruments must be manufactured by such enterprise. If such enterprise does not produce and entrusts other enterprises to produce, the entrusted production enterprise shall apply for the type approval of measuring instruments.” Accordingly, if your company is the entrusting party in the entrusted production mode, it is usually not necessary to apply by yourself, but your company shall ask the entrusted production enterprise to apply. |

#### Regulatory requirements for model confirmation of radio transmission equipment

The regulatory requirements for the model confirmation of radio transmission equipment are mainly stipulated in Administrative Regulations for Radio.

## General regulatory requirements

- Except for micro-power short-distance radio transmission equipment, for the production or import of other radio transmission equipment for domestic sale and use, an application for model confirmation shall be filed with the competent authority.
- The production or import of radio transmission equipment for which model confirmation shall be obtained shall, in addition to complying with the provision of Product quality and other laws and regulations, national standards and relevant regulations of national radio management, conform to the technical indicators confirmed by the model confirmation certificate of radio transmission equipment, and indicate the model confirmation code on the equipment.

## Conditions for obtaining model confirmation

(1) The applicant has the corresponding production capability, technical strength and quality guarantee system.

(2) The work frequency, power and other technical indicators of radio transmission equipment comply with national standards and the provisions of the state on radio regulation.

## Applicant

The main body that produces and imports radio transmission equipment other than micro-power short-range radio transmission equipment sold and used in China.

Note: The Service Guide for Model Confirmation and Licensing of Radio transmission Equipment (Detailed Edition) issued by Radio Administration Bureau of Ministry of Industry and Information Technology clearly stipulates: "If the applicant entrusts a foundry to produce, the entrustment contract between the applicant and the foundry and the technical capacity, production capacity and quality assurance system of the entrusted party shall be provided." Accordingly, even if your company adopt the method of entrusted production, your company shall still be the applicant of radio model confirmation.

## Competent authority

Ministry of Industry and Information Technology

## Application process

The competent authority shall, in accordance with the law, examine whether the radio transmission equipment for which a model confirmation application is filed in accordance with the law meets the conditions, and make an approval or disapproval decision within 30 working days as of the date of acceptance of the application. If it grants approval, it shall issue the model confirmation certificate of radio transmission equipment; or if it disapproves the model confirmation, it shall notify the applicant in writing and explain the reason for disapproval.

Regulatory requirements for model confirmation modification After obtaining the model confirmation certificate of radio transmission equipment, if one of the following situations exists, the applicant shall submit an application for model confirmation modification to the competent authority in accordance with the requirements of the modification application materials:

(1) The information of the original applicant (applicant enterprise) of the certified product has changed;

(2) The information of the commissioned production enterprise of the certified product has changed;

(3) The quality system of the entrusting enterprise has changed (such as changes in production capacity, technical strength, quality assurance system, production line, and place of production);

(4) The components have changed;

(5) After obtaining the certificate, the model has changed before it is actually put into production and sales;

(6) Changes in product-related information due to changes in national laws and regulations or radio management policies.

## Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

## Comments

## Comments

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## Conformity documents

### Documents

What are the conformity documents ? Can you please list them ?

### Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

## Comments

### Importation rules

#### General rules

#### What are the general rules in order to import the product ?

##### Regulatory requirements for import of measuring instruments

The regulatory requirements for the import of measuring instruments are mainly stipulated in Measurement Law, Detailed Rules for the Implementation of Metrology Law, Administrative Measures for Supervision of Imported Instruments of Measurement, Implementation Rules of Administrative Measures for Supervision of Imported Instruments of Measurement of the P.R.C., etc.

##### General regulatory requirements

Anyone who intends to import or sell in China those measuring instruments included in the Catalogue of the People's Republic of China for Imported Measuring Instruments Subject to Type Approval shall apply to the competent authority for type approval.

##### Applicant

- The applications for the type approval of measuring instruments to be imported shall be filed by foreign traders.
- The applications for the type approval of products to be sold by foreign traders in China shall be filed by the foreign traders or its agents.

##### Competent authority

State Administration for Market Regulation (-  
<http://zwfw.samr.gov.cn/wsbs/jl/jklqj/>)

## Application process

- When applying to the metrological administrative department of the State Council for type approval, a foreign trader or the agent thereof shall submit the following application materials: A written application for type approval; Photos of the prototypes of measuring instruments; A description of technical features of measuring instruments (including a Chinese description).
- The metrological administrative department of the State Council shall complete the legal metrological examination on the application materials for type approval within 15 days upon receipt of such materials, primarily examining: (1) whether China's legal units of measurement are used; (2) whether the instruments are those measuring instruments which have been expressly prohibited by the State Council; (3) and whether the instruments fulfill the other requirements of metrology laws and regulations.
- After the legal metrological examination is passed, the metrological administrative department of the State Council shall determine the size and number of prototypes for appraisal, and authorize a technical institution to conduct design appraisal, and notify the foreign trader or the agent thereof to provide the technical institution with experimental prototypes and the technical materials.
- The main content of a design appraisal includes appearance inspection, metrological performance test, safety, adaptability to environment, reliability or endurance test, and other items. The design appraisal shall be completed within three months after receipt of the prototypes, and where it is necessary to extend the period due to special circumstances, such extension shall be reported to the metrological administrative department of the State Council for approval.
- Where the design appraisal passes the examination, the metrological administrative department of the State Council shall issue a Type Approval Certificate of the People's Republic of China for Imported Measuring Instruments to the foreign trader or the agent thereof who applies for type approval, and allowed it to use the mark and serial number of the type approval certificate for imported measuring instruments on the corresponding instruments and their packages.

## Approval requirements for imported measuring instruments

- Applications to import instruments of measurement must be examined and approved according to the procedures stipulated by the state concerning imported commodities.
- The relevant competent administrative department for examination and approval and the special departments in charge of examination shall conduct examination of official measures for instruments of measurement to be imported, which are listed in the [Catalogue of the People's Republic of China Concerning Instruments of Measurement Controlled by Law](#) and must ensure that the instruments of measurement to be imported which are listed in the Catalogue of the People's Republic of China for Imported Measuring Instruments Subject to Type Approval pass model approval. If the relevant instruments fail to pass the examination, the department responsible for examination and approval may not approve of import of them and foreign trade department may not order the goods.
- Application, as required by special needs, to import instruments of non-official measures or those instruments which have been prohibited by the State Council must be subject to approval of metrological administrative departments of the people's governments of provinces, autonomous regions, and municipalities directly under the Central Government.

## Regulatory requirements for electrical and electronic product

### Regulatory requirements for product import

- The electrical and electronic products imported may not violate the compulsory standards or the standards that must be implemented as prescribed by laws, administrative regulations and rules, and shall comply with the national or industrial standards for the restricted use of the hazardous substances contained in electrical and electronic products.
- The entry-exit inspection and quarantine institutions shall conduct port verification and statutory inspection of the electrical and electronic products imported. The Customs shall verify the Customs Clearance Form for Goods Entering China issued by entry-exit inspection and quarantine institutions and undergo the customs clearance formalities under the relevant provisions.

## Radio transmission equipment

### Regulatory requirements for product import

Where it is necessary to carry or deliver radio transmission equipment for which model confirmation should have been obtained for temporary entry to China so as to conduct sports match, scientific experiment or any other activity, the relevant parties shall undergo customs clearance formalities based on model confirmation documents issued by the radio regulatory authority.

## Regulatory requirements for import of mechanical and electrical products

The regulatory requirements for the import of mechanical and electrical products are mainly stipulated in Administrative Measures for Import of Mechanical and Electrical Products and Implementation Measures of Automatic Import License for Mechanical and Electrical Products and other regulations. Since it has not been retrieved that your company sells products listed in the Catalog of Restricted Imports of Mechanical and Electrical Products and Electrical Products or the Catalog of

Mechanical and Electrical Products Prohibited from Importing, this section is mainly aimed at the mechanical and electrical products listed in Automatic Import License Mechanical and Electrical Products Catalog, which are classified as product with automatic import license.

#### General regulatory requirements

- To import mechanical and electrical products with automatic import license, the import entity shall file an application with the Ministry of Commerce or its authorized institution for an Automatic Import License before it goes through the customs formalities.

#### Application requirements

- The import of a mechanical and electrical product in Automatic Import License Mechanical and Electrical Products Catalog shall conform to the provisions of the following laws and administrative regulations:

(1) The provisions of Standardization Law of the P.R.C. regarding the standards and enforcement standards on ensuring the human health, personal safety and property safety;

(2) The provisions of [the Environmental Protection Law of the People's Republic of China](#) and other laws and administrative regulations on environmental protection;

- (3) The provisions [the Law of the People's Republic of China on the Prevention and Control of Air Pollution](#) and other laws and administrative regulations;

(4) The relevant provisions of [the Regulation of the People's Republic of China on Certification and Accreditation](#);

(5) The import of measurement instruments shall conform to the relevant provisions of [Measurement Law of the P.R.C.](#) and Administrative Measures for Supervision of Imported Instruments of Measurement;

(6) The import of radio transmission equipment shall conform to Administrative Regulations for Radio of the P.R.C.;

(7) Conforming to relevant provisions of other laws and administrative regulations.

## Application process

The applicant may submit a written application or an on-line application.

1.

1. Written application procedure: The import applicant can obtain the "Mechanical and Electrical Products Import Application Form" from the issuing agency or download (copy) from the website authorized by the Ministry of Commerce, and submit it to the corresponding competent authority together with other relevant written materials.
2. Online application procedure: The applicant for import logs on the website authorized by the Ministry of Commerce, enters the national mechanical and electrical product import document management system, and truthfully fills in the "Mechanical and Electrical Product Import Application Form" online as required and submits it to the corresponding competent authority

The procedure for issuing "Automatic Import License" for mechanical and electrical products is as follows:

1.

1. For the import of an mechanical and electrical product that shall be handled by the local or departmental mechanical and electrical office, as soon as the local or departmental mechanical and electrical office receives a Form of Application for Import of mechanical and electrical Products and relevant materials, whose contents are correct and which meet the formal requirements, it shall issue an Automatic Import License. In a special case, it may issue an Automatic Import License within 10 working days.
2. For the import of a mechanical and electrical product that shall be handled by the Ministry of Commerce, the local or departmental mechanical and electrical office shall, within 3 working days after it receives a complete set of application materials, submit to the Ministry of Commerce the electronic data thereof upon verification. As soon as the Ministry of Commerce receives the corresponding data, it shall issue an Automatic Import License. In special cases, it may issue an Automatic Import License within 10 working days.

## Documents

What are the required documents ?

Time period

In which time period may we obtain the right to import ?

Administration

What is the administration in charge of importations ? Name and address ?

Comments

Comments

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## Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

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## Commercialization rules

Notification / Declaration

What are the general rules in order to comercialize a product ?  
Is there a notification / declaration to do ?

### Regulatory requirements for the sales of measuring instruments

The regulatory requirements for the sales of measuring instruments are mainly stipulated in Measurement Law, Implementation Rules for Metrology Law of the P.R.C..

Those who sales the new measurement products which have not passed model approval or prototype testing shall be ordered to stop selling such products and seal them up for safekeeping. Their total amount of illegal gains shall be confiscated and a fine of 3,000 yuan or less may be imposed simultaneously.

Whoever sells unqualified measuring instruments shall be confiscated of the illegal income, and may be imposed on a fine.

Where metrological instruments not adopting legal units of measurement are sold in violation of [Article 14](#) of Measurement Law of the P.R.C. , the violator shall be ordered to cease the sale, with the metrological instruments and all illegal income confiscated, and may be fined 10% to 50% of the illegal income.

Those who sell damaged and substandard spare parts and components of measurement instruments shall be ordered to stop their business. The instruments and total amount of illegal gains shall be confiscated and a fine of 2,000 yuan or less may be imposed simultaneously; in more serious cases, the business licence shall be revoked by administrative departments for industry and commerce.

### Regulatory requirements for electrical and electronic product

regulatory requirements for

product sales

The sellers of electrical and electronic products may not sell the electrical and electronic products that violate the national or industrial standards for the restricted use of the hazardous substances contained in electrical and electronic products.

## Regulatory requirements for sales record of radio transmission equipment

The regulatory requirements for the sales record of radio transmission equipment are mainly stipulated in Implementation Measures for Sales Filing of Radio Transmission Equipment (Interim) and other regulations.

### General regulatory requirements

Traders who sell radio transmission equipment requiring model confirmation shall go through the sales filing procedures with the provincial radio management agency in the place of registration through the information platform within 10 working days from the date of starting sales, and be responsible for the authenticity of the filing information, accept the supervision and management implemented by relevant departments in accordance with the law.

### Filing information

The filing information shall include information on the business entity and sales equipment.

- The information of the business entity shall include the name of the business entity, the unified social credit code, contact person and contact information, the address of the physical business premises or the name and website of the online sales platform, and relevant documents, etc.;
- Sales equipment information shall include equipment type, producer name, equipment model, model confirmation code, etc.

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| Applicant             | <p>The main body that sells radio transmission equipment requiring model confirmation.</p> <ol style="list-style-type: none"> <li>1. <ol style="list-style-type: none"> <li>1. Note 1: The Radio Regulatory Bureau of the Ministry of Industry and Information Technology answers in the “FAQs about the Sales and filing of Radio Transmission Equipment” on whether producers of radio transmission equipment need to apply for sales filing: 1. If the producer has external sales, including sales to product users, agents, wholesalers, retailers, etc., sales to comprehensive stores such as Gome and Suning, opening and operating online stores, or sales to users by means of bidding and purchasing, the producer needs to handle sales filing; 2. If the producer is only responsible for production, the enterprise which the producer belongs to has a unit specially responsible for sales, each with an independent business license, and the products produced by the producer are not circulated in the market, but only traded within the internal system, then the producer does not need to handle the sales filing, and the unit specially responsible for sales handles the sales filing; 3. If Company A is entrusted by Company B to produce (i.e. OEM), and Company B is responsible for the market sales of the equipment, Company A does not need to handle the sales filing of the entrusted radio transmission equipment, and Company B shall handle the filing according to the different situations in 1 and 2 above.</li> <li>2. Note 2: The Radio Administration Bureau of the Ministry of Industry and Information Technology has stated in the “FAQs on the Filing of Radio Transmission Equipment Sales” that importers of radio transmission equipment which requires model confirmation need to handle the filing for domestic sales.</li> </ol> </li> </ol> |
| Competent authority   | Provincial radio management agency of the registered place                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| Application process   | When the business entity applies for filing for the first time, after receiving the filing materials, the provincial radio management organization shall issue the filing entity number and the corresponding QR code to it through the information platform within 5 working days if the materials are complete and conform to the statutory form.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| Labeling requirements | Traders selling radio transmission equipment shall indicate the filing subject number or the corresponding QR code in the physical business premises or online sales platform.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

## Requirements for modification of filing

- If the contact person and contact information of the business entity, the address of the physical business premises or the name and website of the online sales platform are changed, the modification formalities shall be handled through the information platform within 10 working days from the date of change;
- If the number of models of the radio transmission equipment sold is increased, the modification formalities shall be handled within 10 working days from the date when the newly added equipment starts to be sold. To terminate the sale of some models of radio transmission equipment, the modification formalities shall be handled in time.

## Documents

What are the required documents ?

## Delay

What is the delay to obtain the right to commercialize ?

## Display in store

Is there some specific rules on the way to display the product in store ?

## Display on internet

Is there some specific mentions to display the product on internet ?

## Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

## Comments

## Comments

## Administration

What is the administration in charge of commercialization ? Name and address ?